

**PLACER COUNTY SUPERIOR COURT
CIVIL LAW AND MOTION TENTATIVE RULINGS
TUESDAY, AUGUST 18, 2026**

These are the tentative rulings for civil law and motion matters set at **8:30 a.m. on Tuesday, August 18, 2026**. The tentative ruling will be the court's final ruling unless notice of appearance and request for oral argument are given to all parties and the court by **4:00 p.m., Monday, August 17, 2026**. Notice of request for oral argument to the court must be made by calling (916) 408-6481. Requests for oral argument made by any other method will not be accepted. Prevailing parties are required to submit orders after hearing to the court within 10 court days of the scheduled hearing date, and after approval as to form by opposing counsel. Court reporters are not provided by the court. Parties may provide a court reporter at their own expense.

Except as otherwise noted, these tentative rulings are issued by the **HONORABLE TRISHA J. HIRASHIMA** and if oral argument is requested, it will be heard at **8:30 a.m. in Department 32**, located at 10820 Justice Center Drive, Roseville, California 95678.

PLEASE NOTE: REMOTE APPEARANCES ARE STRONGLY ENCOURAGED FOR ALL CIVIL LAW AND MOTION MATTERS. (Local Rule 10.24.) More information is available at the court's website: www.placer.courts.ca.gov.

1. M-CV-0081949 Brewer Road Partners v. Storer, Jeremiah M

The motion to set aside void judgment and for other orders is continued to **October 27, 2026 at 8:30 a.m. in Department 32**.

2. M-CV-0090612 Capital One NA v. Newburn, Todd E

Motion to Vacate the Dismissal and Enforce Settlement under CCP 664.6

Plaintiff's request for judicial notice is granted.

Plaintiff moves the court to set aside and vacate the dismissal and enforce the settlement agreement against defendant. Code of Civil Procedure Section 664.6, subdivision (a) provides "[i]f parties to pending litigation stipulate, in a writing signed by the parties outside of the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement." (Code Civ. Proc., § 664.6 (a).) Here, plaintiff submits a signed settlement agreement executed between the parties. (See request for judicial notice Exh. B.) Pursuant to the terms of the stipulation, defendant was to pay to plaintiff the principal sum of \$5,233.51 over payments, plus costs according to a memorandum of costs. (Mot. Enforce, pg. 2.) Pursuant to the terms of the stipulation, in the event of a default,